

the Notice of Motion. The plaintiff successfully alleges fraud, which is one of the statutory bases for punitive / exemplary damages. (Civ. Code, § 3294 (a) [“where it is proven by clear and convincing evidence that the defendant has been guilty of oppression, fraud, or malice, the plaintiff, in addition to the actual damages, may recover damages for the sake of example and by way of punishing the defendant”].)

3. Attorneys’ Fees

The motion is granted with respect to the attorneys’ fees allegations listed in the Notice of Motion. There is no contract here and no successfully asserted statutory claim here that would entitle plaintiff to his attorneys’ fees.

3. 9:00 AM CASE NUMBER: C22-02691
CASE NAME: DUNCAN MILLER VS. THOMAS MAMPALAM, MD
HEARING ON DEMURRER TO: 1ST AMENDED COMPLAINT
FILED BY: MAMPALAM, THOMAS J, MD
TENTATIVE RULING:

Please see Line 2.

4. 9:00 AM CASE NUMBER: C23-02087
CASE NAME: JOHN BROSNAN VS. GEICO INDEMNITY COMPANY
***HEARING ON MOTION IN RE: RENTAL VEHICLE**
FILED BY:
TENTATIVE RULING:

Before the Court is a motion by plaintiff John Brosnan for a rental vehicle. For the reasons set forth, the motion is **denied**.

Background

Plaintiff filed his complaint initiating this action on August 22, 2023. His complaint alleged his claims arose out of a motor vehicle accident that allegedly occurred on August 3, 2022 in which the other vehicle involved in the accident was insured by defendant Geico Indemnity Company. (Compl. 1st and 2nd C/As.) Geico demurred to the Complaint on the ground Plaintiff had no direct claim against Geico. The Court sustained Geico's unopposed demurrer without leave to amend. (2/23/2024 Order.) On October 21, 2024, defendant Garcia filed a demurrer to the Complaint which was set for hearing on February 21, 2025. The Court sustained Garcia's demurrer without leave to amend on statute of limitations grounds. (Min. Order 2/21/2025.)

On November 4, 2025, Plaintiff filed the current motion for a rental vehicle. Garcia filed an opposition to the motion.

Legal Authority and Analysis

Garcia argues the motion should be denied in part because demurrers to Plaintiff's complaint were sustained as to both named defendants. Garcia's recent *ex parte* application for an order dismissing the action under Code of Civil Procedure section 581 was denied on the grounds stated in the order.